

Delaware County Commissioners - October 20th, 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=0d_aJoI_CQ4
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Delaware County Board of Finance & County Commissioners Meeting Report

Meeting Date: October 20, 2025

Report Type: Comprehensive Municipal Meeting Summary

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Delaware County Board of Finance Meeting [00:00:09](#)
- **Summary of Discussion:**
 - **Investment Policy Adoption:** Treasurer Brad Pulk presented a newly created county investment policy formulated by reviewing practices in other counties and state guidelines. Key inclusions outlined by municipal advisor Baker Tilly and Commissioner Brand feature an ethics and conflict-of-interest section, and a final maturity section (up to 25% of the portfolio, requiring an ordinance pursuant to Indiana Code 5-13-9-5.7). The policy operates with highly liquid assets (predominantly daily liquidity) and contains a 4-year expiration clause with annual reviews.
 - **Action & Vote Disposition:** Approved pending final review from legal counsel by unanimous roll call vote [00:05:18](#).
 - **Adjournment of Finance Meeting:** Approved by roll call vote at [00:05:58](#).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Regular meeting of the Delaware County Commissioners called to order by Presiding Officer Henry on October 20, 2025, at 9:01 a.m. [01:30:04](#).
 - **Attendance:**
 - **Present:** Commissioner Rian, Commissioner Brand, Commissioner Henry (Presiding Officer), Treasurer Brad Pulk, Auditor/Auditor representative Janice, and County Attorney John Brook.
 - **Absent:** None noted.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opening Pledge of Allegiance led by the board and attendees [01:3:20].
 - **Board & Committee Appointments:**
 - Noted ongoing vacancies on the Board of Health and the Civic Center Authority Board (specifically seeking a Republican with a legal background).
 - Administrative appointment noted: Dean Thomas replaces Angie Moyer as the commissioners' representative on the Technical Advisory Committee and the Transportation Policy Committee.
 - **Approval of Minutes:** [00:26:09](#) Minutes of the October 7, 2025 Commissioner meeting approved with minor corrections by roll call vote.
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4. Substantive Business & Board Action

- [00:14:52](#) **Tabled Business: BW Facility Agreement**
 - **Action & Vote Disposition:** Kept on the table, pending the outcome of the Munny Recovery OPCO LLC contract later in the agenda.
- [00:15:10](#) **Tabled Business: Tower Lease**
 - **Action & Vote Disposition:** Remained pending/tabled.
- [00:15:18](#) **Tabled Business: J.I. Agreement**
 - **Action & Vote Disposition:** Removed from the table and discussed. (Note: Guardian Advocates presentation occurred under this item).
 - **Deliberation Summary:** Representatives from Guardian Advocates (a 501(c)(3) operating under the court's VASA program providing guardianship, health monitoring, and financial management for elderly and disabled adults without family) requested county support.
 - **Board Action:** Commissioner Rian moved to donate up to \$20,000 this year out of EDIT Project 9 (Wellness funds). Approved unanimously by roll call vote [00:17:24](#).

- **00:17:40 Tabled Business: Purdue Extension Contract**
 - **Sponsor / Presenter:** Molly (Purdue Extension representative) and Justin.
 - **Deliberation Summary:** Annual contract for educational, agricultural, home economics, 4-H, and natural resource services totaling \$100,345 (3% lower than the previous year). Discussion touched upon regional transformation, county representation on the extension board, master gardener programs (\$150 fee for the 15-week course), and future fairgrounds collaboration.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote **00:25:57**.
- **00:26:34 Contracts & Agreements: Muny Recovery OPCO LLC Lease Agreement**
 - **Sponsor / Presenter:** Commissioners / County Attorney John Brook.
 - **Deliberation Summary:** A 15-year triple-net lease agreement (with multiple 15-year extension options out to 2040 or beyond) with Indiana Treatment Centers (Muny Recovery OPCO LLC) to operate the newly completed mental health facility. The tenant will manage operations, seek Medicaid certification, recruit/train staff, pay real estate taxes, and pay tiered lease rates starting at \$17/sq. ft. scaling to \$25.71/sq. ft. Landlord reimbursement for tenant out-of-pocket setup expenses is capped at \$50,000.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote **00:32:22**.
- **00:33:00 Human Resources: HR Plan Actions**
 - **Sponsor / Presenter:** Josh Jarvis (Human Resources).
 - **Deliberation Summary:** Three action items presented: (1) Elimination of the current Imagine 360 HRA plan to reduce costs and eliminate Apex's \$5/employee/month administrative fee; (2) Transition of health savings accounts from STAR HSA to Lively (including debit cards); and (3) Implementation of a dependent care Flexible Spending Account (FSA) through Lively. HR and McGriff will conduct employee education sessions across county locations.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote **00:35:56**.
- **00:38:23 Highway Department: Asphalt Materials Contract Extension**
 - **Sponsor / Presenter:** Carrie (Highway Department).
 - **Deliberation Summary:** Request to extend the 2025 liquid asphalt (tack/emulsion for chip-and-seal and paving) contract pricing into the 2026 construction season at the reduced rate of \$2.60 per gallon.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote **00:39:20**.
- **00:39:26 Treasurer/Auditor: Lean Assist Program Master Agreement (SRI)**
 - **Sponsor / Presenter:** Ed Carroll / Treasurer Brad Pulk / Chad Malikote (SRI Services).
 - **Deliberation Summary:** Master agreement for a software program streamlining tax lien processing, tracking, and notices for the county and local municipalities (e.g., sanitary districts, towns like Selma). Involves a \$5 fee per lien to be absorbed by the lienholder via an ordinance.

- **Action & Vote Disposition:** Tabled to allow legal counsel to revise the sample agreement specifically reflecting Delaware County instead of Martinsville, to be reviewed at the next meeting [00:50:45](#).
- **00:05:00 Ordinances for First Reading: Ordinance No. 2025-23 (Range Fees)**
 - **Deliberation Summary:** Memorializes shooting range fees established previously. Tier 1 (\$0) for local agencies, state police, DNR, and federal agencies providing specialized training; Tier 2 (\$100/day) for outside entities.
 - **Action & Vote Disposition:** Introduced by unanimous roll call vote [00:52:13](#).
- **00:52:20 Ordinances for First Reading: Ordinance No. 2025-24 (Pond Ordinance)**
 - **Sponsor / Presenter:** Kylen Swackhammer (Plan Commission).
 - **Deliberation Summary:** Comprehensive ordinance regulating the safe development, setbacks, depth, vegetation, maintenance, decommissioning, permits, and inspections of ponds to protect public health and safety. Pre-existing ponds are grandfathered as legally non-conforming. Reviewed by Plan Commission attorney Brandon Murphy and County Attorney John Brook.
 - **Action & Vote Disposition:** Introduced by unanimous roll call vote [00:57:44](#).
- **00:57:52 Resolutions for Approval: Resolution No. 2025-18A**
 - **Deliberation Summary:** Amendment to correct the recipient organization's name for the 29-acre property transfer to the **East Central Indiana Regional Planning District** (and update meeting month references).
 - **Action & Vote Disposition:** Approved by unanimous roll call vote [00:58:56](#).
- **00:09:02 Resolutions for Approval: Resolution No. 2025-21A (Highway Department Work on Maggiard)**
 - **Deliberation Summary:** Amended resolution updating estimated project costs to actuals for paving work performed on Maggiard in conjunction with the City of Muncie (City reimbursing 50% of materials totaling \$40,961.39).
 - **Action & Vote Disposition:** Approved by unanimous roll call vote [00:10:42](#).
- **01:00:55 Resolutions for Approval: Resolution No. 2025-22**
 - **Deliberation Summary:** Resolution to transfer county-acquired property at 613 North Broadway (a burned-out structure) to the Town of Albany so they can execute demolition.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote [01:02:17](#).
- **01:02:20 Resolutions for Approval: Resolution No. 2025-23 (Updated Insurance Rates)**
 - **Deliberation Summary:** Approving updated employee health insurance rates in transition to McGriff, featuring a two-tiered grid (wellness vs. non-wellness) where employees failing to complete a free physical within 120 days shift to a higher tier (~\$60/month increase). Accounting accounts for 26 pay periods in 2026 versus 27 in 2025.
 - **Action & Vote Disposition:** Approved by unanimous roll call vote [01:04:08](#).
- **01:04:35 Department Head Reports:**

- **Emergency Management (John Cino):** Requested surplus designation for a truck and tractor from the fairgrounds for upcoming surplus auctions. Noted that the county burn ban implemented September 17 has expired (as 14-day statutory limits elapsed and conditions improved).
- **Maintenance (Don Chambers):** Reported critical failures of domestic hot water boilers/pumps at the county jail (\$4,750 for pump replacement; \$8,965 for motor rebuild/reinstall, with alternate options via Motorcraft).
- **Action & Vote Disposition:** Emergency boiler repairs approved by unanimous roll call vote [01:09:43](#), funded via Justice Center maintenance lines or EDIT funds.
- **Weights and Measures:** October report submitted; ordinance for fee and penalty revisions forthcoming.
- **[01:10:24](#) Financial Claims & Payroll:**
 - **Claims Discussion:** General claims totaling \$1,630,630.38 presented. Extensive debate occurred over credit card lump-sum claim payments totaling over \$50,000 lacking line-item transparency. Commissioners Brand and Henry stated they would withhold signatures on credit card claims going forward unless department-level itemized descriptions and receipts are provided.
 - **Stryker Invoices:** Addressed \$231,636.69 in Stryker medical equipment invoices (\$147,000 for a 3-year service agreement covering EMS heart monitors, load systems, and cot equipment; ~ \$90,000 reappropriated from 2024 encumbrances).
 - **Action & Vote Disposition:**
 - Regular claims and credit card claims: **Approved by Voice Vote** (with Commissioner Brand voting "No" on the roll call specifically regarding the credit card transparency issue) [01:24:30](#).
 - Final BW Construction Disbursement (\$254,590.37): Approved by roll call vote [\[01:5:03\]](#).
 - Payroll (\$1,018,766.44): Approved by roll call vote [01:25:21](#).

5. Open Public Comment / Citizen Forum

- **[01:25:54](#) Mike Catherine** (1000 East CR 700 North, Muncie):
 - Expressed concern over a major wind energy project cancellation (Geronimo/Rorton project owing PJM fees) and indicated property owners are seeking legal counsel regarding property value impacts.
 - Complained about Delaware County Highway Department personnel mowing/accessing side ditches on his private property last Friday without explicit easement proof. County Attorney John Brook and the board noted state statutes regarding right-of-way and ditch maintenance; commissioners agreed to note his preference not to have county crews mow his frontage.
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6. Administrative Updates & Adjournment

- **Board & Staff Announcements:**

- HR newsletter praised by Commissioner Rian.
- Final 2025 Town Hall scheduled for December 11 at 6:00 p.m. in Selma.
- Planning underway for a joint State of the County update in parallel with the City of Muncie's address.
- Future proposals under consideration to allow qualified county employees to carry firearms at work following training and ordinances.
- Upcoming community events noted: Albany Halloween Parade (October 25 at 6 p.m.), recent blood drives, and Ball State Homecoming.

- **Adjournment / Recess:**

- Motion to recess approved by unanimous roll call vote [01:32:32](#).

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